

25NNCV00330 25NNCV00330

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO APPOINT SUCCESSOR-IN-INTEREST

I. INTRODUCTION

Plaintiff Maggie Istilian ("Plaintiff") filed this action against Defendant The Cheesecake Factory Incorporated ("Defendant") for negligence and premises liability arising from a June 9, 2023, incident in which Plaintiff allegedly slipped on a knife left on the floor while walking to the restroom at Defendant's restaurant.

On May 14, 2026, Defendant filed a cross-complaint. On August 4, 2026, Plaintiff filed the instant motion to appoint Barkiev Haroutioun Jarlekian as successor in interest and substitute him as party plaintiff following Plaintiff's passing on June 29, 2026. On August 5, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

II. LEGAL STANDARD

Survival causes of action are governed by Code of Civil Procedure section 377.30, which provides, in relevant part: "A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest ..., and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." "[U]nlike a wrongful death action, a survival action is a cause of action that existed while the decedent is alive and survives the decedent. The decedent's personal representative or successor in interest may commence that action. [Citations.]" (Adams v. Superior Court (2011) 196 Cal.App.4th 71, 78-79.)

Section 377.31 provides that, "[o]n motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." "This provision recognizes that 'the personal representative or successor in interest has an absolute right to be substituted for the decedent.' [Citation.]" (Adams, supra, 196 Cal.App.4th at p. 79.)

Section 377.32, subdivision (a) requires that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

1. The decedent's name.
2. The date and place of the decedent's death.

3. "No proceeding is now pending in California for administration of the decedent's estate."
4. If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.
5. Either of the following, as appropriate, with facts in support thereof:
 - a. "The affiant or declarant is the decedent's successor in interest . . . and succeeds to the decedent's interest in the action or proceeding."
 - b. "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest . . . with respect to the decedent's interest in the action or proceeding."
6. "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."
7. "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

Section 377.32 also requires the movant to attach a certified copy of the decedent's death certificate to the affidavit or declaration. (Code Civ. Proc., § 377.32, subd. (c).)

The court may, in furtherance of justice and on any proper terms, allow a party to amend any pleading by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., section 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) The court may also, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., section 473, subd. (a)(1); *Branick*, supra, 39 Cal.4th at 242.) As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Id.*)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (*Id.*, rule 3.1324(b).)

III. ANALYSIS

In support of his motion to be appointed successor in interest, Plaintiff has submitted the declaration of Barkiev Haroutioun Jarlekian ("Jarlekian"), Decedent Maggie Istilian's surviving spouse.

The Court finds that Jarlekian's declaration complies with Code of Civil Procedure section 377.32, subdivision (a). The declaration provides the following information: The decedent's name is Maggie Istilian. (Jarlekian Decl., ¶ 2.) Decedent died on June 29, 2026, in Arcadia, Los Angeles County, California. (Id., ¶ 3.) No proceeding is pending in California for administration of Decedent's estate, and the estate was not administered. (Id., ¶¶ 4-5.)

Jarlekian further declares that he is Decedent's surviving spouse and successor in interest. (Id., ¶¶ 1, 6.) He states that he and Decedent were married when the subject cause of action arose and remained married and living together through the date of her death, and that Decedent died intestate. (Id., ¶ 6.) Jarlekian further states that although Decedent is survived by one minor child, Noy Jarlekian, Decedent's interest in this action constitutes community property and passes to him as the surviving spouse pursuant to Probate Code section 6401, subdivision (a). (Id., ¶¶ 6-7.)

The Court further finds compliance with Code of Civil Procedure section 377.32, subdivision (c), as Jarlekian has attached a certified copy of Decedent's death certificate. (Id., ¶ 8, Exh. A.) The declaration is executed under penalty of perjury under the laws of the State of California. (Id. at p. 3.)

Based on the foregoing, the Court GRANTS the motion to appoint Barkiev Haroutioun Jarlekian as successor in interest to Decedent Maggie Istilian and substitutes him as party plaintiff in this action.

IV. ORDER

The Court GRANTS Plaintiff's motion for appointment of successor in interest.

Plaintiff to give notice.

Dated: September 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT